

ORDINANCE NO. 2016-4

AN ORDINANCE OF THE CITY OF SPRING BRANCH PROHIBITING THE LOCATION AND OPERATION OF AUTOMOTIVE WRECKING AND SALVAGE YARDS, JUNKYARDS, WRECKING YARDS, METAL RECYCLING YARDS, AND SIMILAR OPERATIONS WITHIN THE CORPORATE LIMITS OF THE CITY; DECLARING THE SAME TO BE A PUBLIC NUISANCE; PROVIDING FOR PENALTIES; SEVERABILITY, CONFLICT REPEALER; AND AN EFFECTIVE DATE

WHEREAS, the City of Spring Branch is vested under state law with the power and authority to enact ordinances for the protection of the health, safety, and welfare of the public; and

WHEREAS, the citizens of the City have experienced the operations of an automobile salvage yard, as the same is defined hereafter, within the City and have found such operations to be offensive and a public nuisance; and

WHEREAS, the operations of that automobile salvage yard are no longer authorized under state law; and

WHEREAS, the City Commission of the City of Spring Branch is of the opinion that the future operation of an automobile salvage yard, a junkyard, or a metal recycling business should be prohibited within the corporate limits of the City of Spring Branch;

WHEREAS, NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF SPRING BRANCH, TEXAS, THAT:

Section 1. The recitals stated above are hereby adopted for all purposes.

Section 2. For the purposes of this Ordinance, the following definitions shall apply:

- (a) "Automotive Wrecking and Salvage Yard" means an outdoor place where a person stores three or more vehicles for the purpose of dismantling or wrecking the vehicles to remove parts for sale or for use in automotive repair or rebuilding.
- (b) "Junk" means copper, brass, iron, steel, rope, rags, batteries, tires, or other material that has been discarded or sold at a nominal price by a previous owner of the material. The term does not include a wrecked vehicle.
- (c) "Junkyard" means a place where a business that owns junk, and is operated to store, buy, or sell junk, keeps all or part of the junk outdoors until the business disposes of the junk.
- (d) "Metal Recycling Business" means a business primarily engaged in the business of:
 - (i) converting metal or other material into raw material products that have:

- (i) prepared grades; and
- (ii) an existing or potential economic value;
- (ii) using raw material products described by Paragraph (i) in the production of new products; or
- (iii) obtaining or storing metal or other material for a purpose described by Paragraph (i) or (ii).

Section 3. It shall be unlawful to locate or operate an Automotive Wrecking and Salvage Yard, Junkyard, or Metal Recycling Business within the corporate limits of the City of Spring Branch, and the operation of an Automotive Wrecking and Salvage Yard Junkyard, or Metal Recycling Business is hereby declared and defined by the City Commission of the City of Spring Branch to be a public nuisance.

Section 4. Violation of this Ordinance shall be a Class C Misdemeanor, punishable by a fine of up to \$500 per offense, with each day of operation of an Automotive Wrecking and Salvage Yard Junkyard, or Metal Recycling Business being a separate offense. In addition, the City shall have authority to pursue any other remedy allowed by law, including civil penalties and injunctive relief.

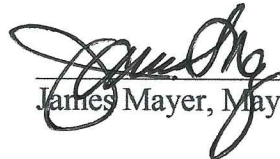
Section 5. Should any sentence, paragraph, subdivision, clause, phrase or section of this ordinance be adjudged or held to be unconstitutional, illegal or invalid, the same shall not affect the validity of this ordinance as a whole, or any part or provision thereof other than the part so decided to be invalid, illegal or unconstitutional, and shall not affect the validity of any remaining provision of the Ordinance as a whole.

Section 6. All provisions of the ordinances of the City of ~~Balch~~ ^{Branch} Springs in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict, and all other provisions of the ordinances of the City of Balch Springs not in conflict with the provisions of this ordinance shall remain in full force and effect.

Section 7. This ordinance shall take effect immediately from and after its passage.

ADOPTED AND APPROVED this, the 10 th day of May, 2016.

CITY OF SPRING BRANCH


James Mayer, Mayor

ATTEST:


Bambi Mayer, City Secretary